An incorporated bank, in Alabama, is not only the mere creature of the law creating it, as banks are in other states; but it is the creature of a peculiar fundamental law; and if its charter is not in conformity to the provisions of the fundamental law, it is void. It must be recollected, that the banks, which are the plaintiffs in these suits, when they present themselves to the legislature, asking permission to use their corporate privileges there, are not demanding a right, but asking a favor, which the legislature may grant or refuse as it pleases. If it should refuse, it would violate no duty, incur no responsibility. If, however, the court exercise the power, it is upon the positive obligation of Alabama, that the presumption must arise, or the right does not exist. A positive rule of law cannot arise out of an imperfect obligation, by presumption or implication. But to put it on the foot of bare repugnance of the law, presumed to be adopted, to the laws of the country adopting, if there be any repugnance, the court ought not to presume the adoption. Story's Conflict of Laws 37. The charter of every bank, not created in conformity with the constitution of Alabama, must, at least, be repugnant to it. The presumption is, that the charters of all these banks were repugnant, there being no reason or inducement to make them conform, in the states where they were created. The power of the court to adopt the laws creating these banks, as they actually existed, and the power of the legislature of Alabama to adopt them in a modified form, or to grant the banks a mere permission to do a specified act, present very different questions, and involve very different powers. If, therefore, the legislature could not adopt the charters, in the least objectionable form, nor authorize the banks to deal in exchange, without violating the constitution of Alabama, how can it be said, that the contracts in controversy are not against the policy of the laws of Alabama? And by what authority does the majority of this court presume, that Alabama has adopted those laws? The general rule is, that slight evidence and circumstances shall defeat a mere legal presumption of law. This case will be a signal exception to that rule.

*In the case of *Pennington* v. *Townsend*, 7 Wend. 278, the Protection and Lombard Bank, chartered by New Jersey, by agents, [*605 undertook to do banking business in New York, and there discounted the check which was the subject of the suit, in violation of the restraining acts of 1813 and 1818; the first of which enacts, that no person, unauthorized by law, shall become a member of any association for the purpose of issuing notes or transacting any other business which incorporated banks may or do transact. The act of 1818 enacts, that it shall not be lawful for any person, association or body corporate to keep any office of deposit for discounting, or for carrying on any kind of banking business, and affixes a penalty of $1000, to be recovered, &c. Under these laws, the contract between the parties was held to be void; and the court says, "The protection against the evil intended to be remedied, to wit, preventing banking without the authority of the legislature of the state, is universal in its application within the state and without exception; unless qualified by the same power which enacted it, or by some other paramount law. Such is not the law incorporating this bank."

Is there anything in these laws which more positively prohibits banking in New York, without the authority of the legislature of that state, than there is in the constitution of Alabama, prohibiting all banking, except in

the manner prescribed by the constitution? Can it be believed, that she intended to protect herself against the encroachments of her own legislature only, and to leave herself exposed to the encroachments of all her sister states? Does the language employed in these provisions of the constitution jnstify any such construction? It is general, comprehensive, and not only restrictive, but expressly prohibitory. Whatever is forbidden by the constitution of Alabama, can be done by no one, within her jurisdiction; and it was sufficient for her to know, that no bank could do any valid banking act there, without violating her constitution. It was contended, by the counsel for the banks, that no law could be regarded as declaring the policy of the state, unless it was penal; and inflicted some punishment for its violation. This doctrine is as novel as it is unfounded in principle. I know of no such exclusive rule by which to reach the mind and intention of the legislature. If the language used shows clearly that particular acts were intended to be prohibited, and the act is afterwards done, it is against the policy of the law and void. Suppose, the legislature of Alabama were to establish a bank disregarding all the conditions and restrictions imposed by the constitution; would it not violate that instrument, and therefore, the act be void? And can Georgia, Louisiana or Pennsylvania, by their respective legislatures, do in Alabama, what her own legislature cannot do? The relations which these states hold towards each other, in their individual capacity of states, under the constitution of the United States, is that of perfect independence. In the case of *Buckner* v. *Finley*, 2 Pet. 590, Chief Justice MARSHALL said, "For all national purposes embraced by the federal constitution, the states *606] and the citizens thereof are one, *united under the same sovereign authority, and governed by the same laws. In all other respects, the states are necessarily foreign to, and independent of each other." It is in this foreign and independent relation, that these four states stand before this court in these cases. The condition of Alabama, taken with a view to this relation, cannot be worse than that of an independent nation, in like circumstanstances. What that would be, we will see from authority.

"Nations being free and independent of each other in the same manner as men are naturally free and independent, the second general law of their society is, that each nation ought to be left in the peaceable enjoyment of that liberty it has derived from nature. The natural society of nations cannot subsist, if the rights which each has received from nature are not respected. None would willingly renounce its liberty; it would rather break of all commerce with those that should attempt to violate it. From this liberty and independence, it follows, that every nation is to judge of what its conscience demands, of what it can or cannot do, of what is proper or improper to be done; and consequently, to examine and determine whether it can perform any office for another, without being wanting in what it owes to itself. In all cases, then, where a nation has the liberty of judging what its duty requires, another cannot oblige it to act in such or such a manner. For the attempting this would be doing an injury to the liberty of nations. A right to offer constraint to a free person can only be invested in us in such cases, where that person is bound to perform some particular thing for us, or from a particular reason that does not depend on his judgment; or, in a word, where we have a complete authority over him." Vattel 53–4.

Now, apply these just and reasonable principles to Alabama, in her relation of a foreign and independent state, reposing upon the rights reserved to her by the tenth amendment of the constitution of the United States; and then show the power that can compel her to pass penal laws to guard and protect those perfect, ascertained, constitutional rights from the illegal invasion of a bank created by any other state. If this power exists at all, it can be shown, and the authority by which it acts. But not even a reasonable pretence for any such power or authority has been shown. The conclusion must, therefore, be, that Alabama, as an independent foreign state, owing no duty, nor being under any obligation to either of the states, by whose corporations she was invaded, was the sole and exclusive judge of what was proper or improper to be done; and consequently, had a right to examine and determine whether she could grant a favor to either of those states, without injury to herself; unless, indeed, there be a controlling power, in this court, derived from some provision of the constitution of the United States. As none such has been set up, or relied upon, in the opinion of the majority of the court, for the present, I have a right to conclude, that none such exists. And without considering any of the minor points discussed in the argument, or noticed in the opinion, I dismiss the subject.

Judgment reversed.

521